

M/s K.K. Duplex and Paper Mills Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd. and others

High Court of Judicature at Allahabad · Division Bench · 7 August 2026 · Writ-C No. 36622 of 2014 · **Listed 18.08.2026; Principal Secretary, Energy directed to appear**

HEADNOTE

2014 writ challenging the vires of U.P. Electricity Supply Code, 2005 Clauses 4.6 (h) (i) and 4.21 (a) and Chapter 4 of the Cost Data Book. No counter affidavit filed despite a four-week direction of 27.11.2025 and about twelve years of pendency. Principal Secretary, Energy, Lucknow directed to appear and explain; listed 18.08.2026. Merits not considered.

FACTUAL SUMMARY

The petitioner, an industrial paper mill, filed this 2014 writ against Paschimanchal Vidyut Vitran Nigam Ltd. challenging the vires of Clauses 4.6 (h) (i) and 4.21 (a) of the U.P. Electricity Supply Code, 2005 and Chapter 4 of the Cost Data Book. On 27 November 2025 the Court granted four weeks to file a counter affidavit. None was filed. On 7 August 2026 the Division Bench recorded that in a serious vires challenge the State had not filed a counter for about twelve years.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

listing; default of counter-affidavit

HOLDING

No decision on the vires challenge. The Court recorded that despite four weeks granted on 27.11.2025, no counter affidavit had been filed in a 2014 petition challenging Clauses 4.6 (h) (i) and 4.21 (a) of the 2005 Supply Code and Chapter 4 of the Cost Data Book, directed the Principal Secretary, Energy, Lucknow to appear and explain the twelve-year default, and listed the matter on 18.08.2026.

FLAG order cites Clauses 4.6 (h) (i); whether 4.6(h) and 4.6(i) or 4.6(h)(i) is unclear

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED —

NOT DECIDED —

NOT DECIDED —